Website privacy notice

Introduction

- Baby Monitor Direct LLC is committed to ensuring that your privacy is protected. Protecting your privacy and the personal information you provide us, is a top priority for us. We are committed to safeguarding the privacy of our website visitors and service users. We want our visitors and users to fully understand what information we collect, how we use this information, and the steps we take to protect personal information. We encourage you to read this privacy notice to learn more about the policies and procedures we have put in place to do just that.
- This notice applies where we are acting as a data

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collected and processed from its consumers within the last twelve (12) months.

- the purposes for which we may process personal data; and
- the legal bases of the processing.

- We may process information relating to transactions, including purchases of goods and services, that you enter into with us and/or through our website ("transaction data"). The transaction data may include your contact details, and the transaction details. The transaction data may be processed for the purpose of supplying the purchased goods and services and keeping proper records of those transactions. The legal basis for this processing is the performance of a contract between you and us and/or taking steps, at your request, to enter into such a contract.
- We may process information contained in any enquiry you submit to us regarding goods and/or services ("enquiry data"). The enquiry data may be processed for the purposes of offering, marketing and selling relevant goods and/or services to you. The legal basis for this processing is our legitimate interest.
- We may process your account data ("account data"). The account data may include your name and email address. The account data may be processed for the purposes of operating our website, providing our services, ensuring the security of our website and services, maintaining back-ups of our databases, and communicating with you. The legal basis for this processing is our legitimate interests, namely the proper administration of our website and business.

- We may process information relating to our customer relationships, including customer contact information ("customer relationship data"). The customer relationship data may include your name, your contact details, and information contained in communications between us and you. The customer relationship data may be processed for the purposes of managing our relationships with customers, communicating with customers, keeping records of those communications and promoting our products and services to customers. The legal basis for this processing is our legitimate interests, namely the proper management of our customer relationships.
- We may process data about your use of our website and services ("usage data"). The usage data may include your IP address, geographical location, browser type and version, operating system, length of visit, page views and website navigation paths, as well as information about the timing, frequency and pattern of your service use. The source of the usage data is our analytics tracking system. This usage data may be processed for the purposes of analysing the use of the website and services. The legal basis for this processing is our legitimate interests, namely monitoring and improving our website and services.
- We may process information that you provide to us for the purpose of subscribing to our email notifications and/or newsletters ("notification data"). The notification data may be processed for the purposes of sending you the relevant notifications and/or newsletters. The legal basis for this processing is consent.
- We may process information contained in or relating to any communication that you send to us ("correspondence data"). The correspondence data may include the communication content and metadata associated with the communication. Our website will generate the metadata associated with communications made using the website contact forms. The

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correspondence data may be processed for the purposes of communicating with you and record-keeping. The legal basis for this processing is our legitimate interests, namely the proper administration of our website and business and communications with users.

- We may process any of your personal data identified in this notice where necessary for the establishment, exercise or defence of legal claims, whether in court proceedings or in an administrative or out-of-court procedure. The legal basis for this processing is our legitimate interests, namely the protection and assertion of our legal rights, your legal rights and the legal rights of others.
- In addition to the specific purposes for which we may process your personal data set out in this Section 2, we may also process any of your personal data where such processing is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person.
- Please do not supply any other person's personal data to us, unless we prompt you to do so.
- Text Marketing and notifications: By entering your phone number in the checkout and initialising a purchase, subscribing via our subscription form or a keyword, you agree that we may send you text notifications (for your order, including abandoned cart reminders) and text marketing offers. Text marketing messages will not exceed 20 a month. You acknowledge that consent is not a condition for any purchase.
  If you wish to unsubscribe from receiving text marketing messages and notifications reply with STOP to any mobile message sent from us or use the unsubscribe link we provided you with in any of our messages. You understand and agree that alternative methods of opting out, such as using alternative words or requests will not be accounted as a reasonable means of opting out.

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Message and data rates may apply.
For any questions please text HELP to the number you received the messages from. You can also contact us for more information. If you wish to opt out please follow the procedures above.

Providing your personal data to others

- We may disclose your personal data to any member of our group of companies (this means our subsidiaries, our ultimate holding company and all its subsidiaries) insofar as reasonably necessary for the purposes, and on the legal bases, set out in this notice.
- We may disclose your personal data to our trusted third parties we have engaged to perform business-related functions on our behalf including, but not limited to, marketing and distribution of our products, handling payments, hosting services, database maintenance, delivery of your order and conducting analytics.
- Financial transactions relating to our website and services are handled by our payment services providers. We will share transaction data with our payment services providers only to the extent necessary for the purposes of processing your payments, refunding such payments and dealing with complaints and queries relating to such payments and refunds.
- In addition to the specific disclosures of personal data set out in this Section 3, we may disclose your personal data where such disclosure is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person. We may also disclose your personal data where such disclosure is necessary for the establishment, exercise or defence of legal claims, whether in court proceedings or in an administrative or out-of-court procedure.

No Sale of Personal Information

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- Baby Monitor Direct LLC does not and will not sell Personal Information.

To our EU customers – Your Information and Countries Outside of EEA.

- The personal data that we process may be transferred to, process or stored outside the European Economic Area ("EEA").
- We committed to process any EU personal information in third countries which approved as adequate by the European Commission or through the use of the European Commission's standard data protection clauses.
- Further information may be obtained from our Data Protection Officer.

Retaining and deleting personal data

- This Section sets out our data retention policies and procedure, which are designed to help ensure that we comply with our legal obligations in relation to the retention and deletion of personal data.
- Personal data that we process for any purpose or purposes shall not be kept for longer than is necessary for that purpose or those purposes.
- We will retain your personal data as follows:
    - Where we process pre-sale personal data, we will keep this data for 2 years.
    - When personal data is processed by cause of a contract, the data will be kept for 5 years after sale or after contract termination.
- Notwithstanding the other provisions of this Section, we may retain your personal data where such retention is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person.

How we secure your data

- We have put in place physical, administrative, and technical procedures and measures designed to help prevent unauthorized access, to maintain data security, and to use the personal data we use correctly. These safeguards vary based on the sensitivity of the personal data we use.
- Although we take appropriate measures to safeguard against unauthorized disclosures of personal data, we cannot assure you that your personal data will never be disclosed, altered or destroyed in a manner that is inconsistent with this privacy policy.

About cookies

- A cookie is a file containing an identifier (a string of letters and numbers) that is sent by a web server to a web browser and is stored by the browser. The identifier is then sent back to the server each time the browser requests a page from the server.
- Cookies may be either “persistent” cookies or “session” cookies: a persistent cookie will be stored by a web browser and will remain valid until its set expiry date, unless deleted by the user before the expiry date; a session cookie, on the other hand, will expire at the end of the user session, when the web browser is closed.
- Cookies do not typically contain any information that personally identifies a user, but personal information that we store about you may be linked to the information stored in and obtained from cookies.

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Cookies that we use

- We use cookies for the following purposes:
    - authentication – we use cookies to identify you when you visit our website and as you navigate our website (cookies used for this purpose are: identify cookies);

- personalization – we use cookies to store information about your preferences and to personalize the website for you(cookies used for this purpose are: identify cookies);
- advertising – we use cookies to help us to display advertisements that will be relevant to you (cookies used for this purpose are: identify cookies);
- analysis – we use cookies to help us to analyze the use and performance of our website and services (cookies used for this purpose are identify cookies); and
- cookie consent – we use cookies to store your preferences in relation to the use of cookies more generally (cookies used for this purpose are: identify cookies).
- We use Google Analytics to analyze the use of our website. Google Analytics gathers information about website use by means of cookies. The information gathered relating to our website is used to create reports about the use of our website. Google's privacy policy is available at: https://policies.google.com/privacy. The relevant cookies are: identify cookies.

Managing cookies

- Most browsers allow you to refuse to accept cookies and to delete cookies. The methods for doing so vary from browser to browser, and from version to version. You can however obtain up-to-date information about blocking and deleting cookies via these links:
  - https://support.google.com/chrome/answer/95647 (Chrome);
  - https://support.mozilla.org/en-US/kb/enable-and-disable-cookies-website-preferences (Firefox);
  - https://www.opera.com/help/tutorials/security/cookies/ (Opera);
  - https://support.microsoft.com/en-gb/help/17442/windows-internet-explorer-delete-

manage-cookies (Internet Explorer);

- https://support.apple.com/kb/PH21411 (Safari); and
- https://privacy.microsoft.com/en-us/windows-10-microsoft-edge-and-privacy (Edge).

- Blocking all cookies will have a negative impact upon the usability of many websites.
- If you block cookies, you will not be able to use all the features on our website.

Your rights (For Our EU customers)

- In this Section, we have summarized the rights that you have under data protection law. Some of the rights are complex, and not all of the details have been included in our summaries. Accordingly, you should read the relevant laws and guidance from the regulatory authorities for a full explanation of these rights.
- Your principal rights under data protection law are:
  - the right to access.
  - the right to rectification.
  - the right to erasure.
  - the right to restrict processing.
  - the right to object to processing.
  - the right to data portability.
  - the right to complain to a supervisory authority; and
  - the right to withdraw consent.
- You have the right to confirmation as to whether or not we process your personal data and, where we do, access to the personal data, together with certain additional information. That additional information includes details of the purposes of the processing, the categories of personal data concerned and the recipients of the personal data. Providing the rights and freedoms of others are not affected, we will supply to you a copy of

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your personal data. The first copy will be provided free of charge, but additional copies may be subject to a reasonable fee. You can access your personal data by contact us through our web site.

- You have the right to have any inaccurate personal data about you rectified and, taking into account the purposes of the processing, to have any incomplete personal data about you completed.
- In some circumstances you have the right to the erasure of your personal data without undue delay. Those circumstances include: the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed; you withdraw consent to consent-based processing; you object to the processing under certain rules of applicable data protection law; the processing is for direct marketing purposes; and the personal data have been unlawfully processed. However, there are exclusions of the right to erasure.
- In some circumstances you have the right to restrict the processing of your personal data. Those circumstances are: you contest the accuracy of the personal data; processing is unlawful but you oppose erasure; we no longer need the personal data for the purposes of our processing, but you require personal data for the establishment, exercise or defense of legal claims; and you have objected to processing, pending the verification of that objection. Where processing has been restricted on this basis, we may continue to store your personal data. However, we will only otherwise process it: with your consent; for the establishment, exercise or defense of legal claims; for the protection of the rights of another natural or legal person; or for reasons of important public interest.
- You have the right to object to our processing of your personal data on grounds relating to your particular situation, but only to the extent that the legal basis for the

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processing is that the processing is necessary for: the performance of a task carried out in the public interest or in the exercise of any official authority vested in us; or the purposes of the legitimate interests pursued by us or by a third party. If you make such an objection, we will cease to process the personal information unless we can demonstrate compelling legitimate grounds for the processing which override your interests, rights and freedoms, or the processing is for the establishment, exercise or defense of legal claims.

- You have the right to object to our processing of your personal data for direct marketing purposes (including profiling for direct marketing purposes). If you make such an objection, we will cease to process your personal data for this purpose.
- If you consider that our processing of your personal information infringes data protection laws, you have a legal right to lodge a complaint with a supervisory authority responsible for data protection. You may do so in the EU member state of your habitual residence, your place of work or the place of the alleged infringement.
- To the extent that the legal basis for our processing of your personal information is consent, you have the right to withdraw that consent at any time. Withdrawal will not affect the lawfulness of processing before the withdrawal.
- You may exercise any of your rights in relation to your personal data by written notice to us OR by contact us through our web site.

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Your rights (For Our U.S California consumers)

- The CCPA provides consumers (California residents) with specific rights regarding their personal information. This section describes your CCPA rights and explains how to exercise those rights.
- Access to Specific Information and Data Portability Rights

- You have the right to request that the Company disclose certain information to you about our collection and use of your personal information over the past 12 months. Once we receive and confirm your verifiable consumer request, we will disclose to you:

    - The categories of personal information we collected about you.
    - The categories of sources for the personal information we collected about you.
    - Our business or commercial purpose for collecting or selling that personal information.
    - The categories of third parties with whom we share that personal information.
    - The specific pieces of personal information we collected about you (also called a data portability request).
    - If we disclosed your personal information for a business purpose, we will identify the personal information categories that each category of recipient obtained.

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Deletion Request Rights

- You have the right to request that the Company delete any of your personal information that we collected from you and retained, subject to certain exceptions. Once we receive and confirm your verifiable consumer request, we will delete (and direct our service providers to delete) your personal information from our records, unless an exception applies.
- We may deny your deletion request if retaining the information is necessary for us or our service provider(s) to:

    - Complete the transaction for which we collected the personal information, provide a good or service that you requested, take actions reasonably anticipated

within the context of our ongoing business relationship with you, or otherwise perform our contract with you.

- Detect security incidents, protect against malicious, deceptive, fraudulent, or illegal activity, or prosecute those responsible for such activities.
- Debug products to identify and repair errors that impair existing intended functionality.
- Exercise free speech ensure the right of another consumer to exercise their free speech rights, or exercise another right provided for by law.
- Comply with the California Electronic Communications Privacy Act (Cal. Penal Code §1546 et. seq.).
- Engage in public or peer-reviewed scientific, historical, or statistical research in the public interest that adheres to all other applicable ethics and privacy laws, when the information's deletion may likely render impossible or seriously impair the research's achievement, if you previously provided informed consent.
- Enable solely internal uses that are reasonably aligned with consumer expectations based on your relationship with us.
- Comply with a legal obligation.
- Make other internal and lawful uses of that information that are compatible with the context in which you provided it.

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Exercising Access, Data Portability, and Deletion Rights

- To exercise the access, data portability, and deletion rights described above, please submit a verifiable consumer request to us by:
  - Calling us at (833) 568-2229
- Only you, or a person registered with the California Secretary of State that you authorize to act on your

behalf, may make a verifiable consumer request related to your personal information. You may also make a verifiable consumer request on behalf of your minor child.

- You may only make a verifiable consumer request for access or data portability twice within a 12-month period. The verifiable consumer request must:
  - Provide sufficient information that allows us to reasonably verify you are the person about whom we collected personal information or an authorized representative.
  - Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.
- We cannot respond to your request or provide you with personal information if we cannot verify your identity or authority to make the request and confirm the personal information relates to you.
- Making a verifiable consumer request does not require you to create an account with us.
- We will only use personal information provided in a verifiable consumer request to verify the requestor's identity or authority to make the request.

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Response Timing and Format

- We endeavor to respond to a verifiable consumer request within forty-five (45) days of its receipt. If we require more time (up to [90] days), we will inform you of the reason and extension period in writing.
- Any disclosures we provide will only cover the 12-month period preceding the verifiable consumer request's receipt. The response we provide will also explain the reasons we cannot comply with a request, if applicable. For data portability requests, we will select a format to provide your personal information that is readily useable and should allow you to transmit the information from one entity to another entity without hindrance.

- We do not charge a fee to process or respond to your verifiable consumer request unless it is excessive, repetitive, or manifestly unfounded. If we determine that the request warrants a fee, we will tell you why we made that decision and provide you with a cost estimate before completing your request.
- Personal Information Sales Opt-Out and Opt-In Rights
- If you are 16 years of age or older, you have the right to direct us to not

Non-Discrimination

- We will not discriminate against you for exercising any of your CCPA rights. Unless permitted by the CCPA, we will not:
  - Deny you goods or services.
  - Charge you different prices or rates for goods or services, including through granting discounts or other benefits, or imposing penalties.
  - Provide you a different level or quality of goods or services.
  - Suggest that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

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Changes to our privacy notice

- The Company reserves the right to amend this privacy notice at our discretion and at any time.
- When we make changes to this privacy notice, we will post the updated notice on the Website and update the notice's effective date. Your continued use of our Website following the posting of changes constitutes your acceptance of such changes.

Contact Information

- If you have any questions or comments about this notice, the ways in which the Company collects and uses your information described below and in the Privacy Policy, your choices and rights regarding such use, or wish to exercise your rights under California law, please do not hesitate to contact us directly by sending an email to – support@babysensemonitors.com or calling us at (833) 568-2229.

TEXT MARKETING NOTIFICATIONS

By subscribing to Baby Monitor Direct LLC text notifications, you agree to receive automated marketing text messages from us about our products and services at the phone number you provided when you subscribed, and that the messages may be sent via automatic telephone dialing system or other technology. Message frequency is recurring. Consent is not a condition of purchase. Message and data rates may apply. Reply STOP, END, CANCEL, UNSUBSCRIBE or QUIT to opt-out and HELP for customer support. You may receive an additional text message confirming your decision to opt-out. You understand and agree that attempting to opt-out by any means other than texting the opt-out commands above is not a reasonable means of opting out.

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